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Attorneys for Defendants
KATIE PALACIOS and HOPE PROGRAM

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

Brendan Ngehsi Newanforbi Plaintiff, v. KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive, Defendants.	Case No. STK-CV-UF-2026-0001032 **DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, TO PLAINTIFF**

PROPOUNDING PARTY: Defendants KATIE PALACIOS and HOPE PROGRAM

RESPONDING PARTY: Plaintiff, BRENDAN NGEHSI NEWANFORBI

SET NO: One

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PRELIMINARY STATEMENT

Pursuant to Code of Civil Procedure § 2031.010, please produce and permit inspection and copying of the documents and/or inspection, photocopying, testing and sampling of other tangible things described below. The place of inspection shall be SIMS, LAWRENCE & BROGHAMMER 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. Inspection shall be thirty (30) days from the date of service of this request. This request is made on the grounds that the items requested are relevant to the subject matter of this litigation or reasonably calculated to lead to the discovery of admissible evidence.

Pursuant to Code of Civil Procedure § 2031.210, Responding Party shall also serve a written response containing (1) a statement that he or she will comply with the demand, (2) a representation of inability to comply and the reason for the inability to comply with the demand, and/or (3) an objection to the demand. If Responding Party withholds any documents requested because of a claim of privilege, please list the following for each such item:

- Brief description of the nature and contents of the matter claimed to be privileged;
- The name, occupation, and capacity of the individual from whom the allegedly privileged matter emanated;
- The name, occupation, and capacity of the individual to whom the allegedly privileged matter was directed;
- The date the item bears; and
- The privilege claimed.

Please stamp the documents produced sequentially to conform with the order in which the documents are maintained in your files. Failure to comply with this request will result in a formal notice motion to compel production of documents and all costs incurred in bringing said motion will be requested.

DEFINITIONS

1. "**ALL**" as used herein shall mean each, every, all and any.

2. "**CONCERN(ING)**" as used herein shall mean embodying, referring to, summarizing, constituting, containing, analyzing, studying, explaining, mentioning, showing,

discussing, supporting, refuting, reflecting, memorializing, describing, commenting upon, and/or connected in any way factually or logically with the matter therein.

3. "**DOCUMENT(S)**" as used herein shall refer to and mean all "writings" as that term is defined and described in the Evidence Code. "**DOCUMENT(S)**" shall include, without limitation, all written, typed, or otherwise preserved **COMMUNICATIONS**, including any letter, correspondence, e-mail, report, note, book, pamphlet, article, bulletin, directive, review, publication, memorandum, diary, log, test, analysis, study, projection, check, receipt, bill, purchase order, shipping order, contract, lease, agreement, work paper, calendar, envelope, paper, telephone message, text message, tape, computer tape, computer disk, cellphone data, computer data, databases, computerized indices, compact disks, microfiche, drawing, account, ledger, statement, financial date, prospectus, audio recording, video recording, digital message, and all other writings or communications including all non-identical copies, drafts, preliminary sketches, no matter how produced or maintained in YOUR actual or constructive possession, custody or control of which YOU have knowledge of the existence, and whether prepared, published or released by YOU or by any other person or entity. It is intended to include all drafts of DOCUMENTS and all DOCUMENTS in YOUR actual or constructive possession, custody, or control, whether prepared, published, or released by YOU or by any other person or entity. Without limitation on the foregoing, the term, "DOCUMENT" shall include any copy that differs in any respect from the original or other version of the DOCUMENT, such as, but not limited to, copies containing notations, insertions, corrections, marginal notes, amendments or any other variations.

4. **"HOPE PROGRAM"** shall mean HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION referenced in your operative complaint, its agents, assigns, and successors in interest.

5. **"PALACIOS"** shall mean KATIE PALACIOS, referenced in your operative complaint.

6. **"YOU", "YOUR"** and **"YOURSELF"** as used herein means Plaintiff Brendan Ngehsi Newanforbi.

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7. **"HEALTH CARE PROVIDER"** shall include any person referred to in Code of Civil Procedure § 667.7(e)(3).

8. **"RELATE", "RELATE TO", "RELATED TO", "RELATING", "RELATING TO", "REGARDING", "REFER", "REFERRED", "REFERRING TO", "REFER TO", "REFLECTING", "REFLECT" and "RELATED"** as used herein shall refer to and mean, without limitation, any and all things, information, facts, or documents which constitute, mention, refer, concern, relate, evidence, discuss, reflect, or are in any way connected or otherwise related to in any way, in whole or in part, to the matters described in the Request for Production involved.

9. **"DEFENDANTS"** shall mean Defendant HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION, its agents, assigns, and successors in interest, and Defendant KATIE PALACIOS, referenced in your operative complaint.

10. **"COMMUNICATION(S)"**, **"COMMUNICATED"** and **"CORRESPONDENCE"** as used herein shall refer to and mean, without limitation, any meeting, conference, face-to-face conversation, telephone conversation, email, text message, video conference, or conference and any COMMUNICATION using any related media, including any written, taped, electronic, or recorded COMMUNICATION of any kind whatsoever.

12. "PUBLICLY SUBSIDIZED HEALTH CARE PROGRAM" shall mean any health care program or health insurance program wholly or partially funded by a governmental agency, including, but not limited to, Medi-Cal, Medicaid, Social Security, and locally subsidized programs.

13, **"MENTAL HEALTH"** shall have the same meaning as YOU intended in the use of terms such as mental and emotional injury, or injury to mental and emotional well-being, as referenced in YOUR operative complaint.

REQUESTS FOR PRODUCTION

REQUEST FOR PRODUCTION NO. 1:

Any and ALL DOCUMENTS that support YOUR contention that DEFENDANTS are liable to YOU for fraud/intentional misrepresentation as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 2:

Any and ALL DOCUMENTS that support YOUR contention that DEFENDANTS are liable to YOU for negligence including negligence per se as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 3:

Any and ALL DOCUMENTS that support YOUR contention that DEFENDANTS are liable to YOU for the intentional infliction of emotional distress as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 4:

Any and ALL DOCUMENTS that support YOUR contention that DEFENDANTS are liable to YOU for the intentional interference with prospective economic advantage as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 5:

Any and ALL DOCUMENTS that support YOUR contention that DEFENDANTS are liable to YOU for violation of the Bane Act as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 6:

Any and ALL DOCUMENTS that support YOUR contention that YOU are entitled to declaratory relief as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 7:

Any and ALL DOCUMENTS that support YOUR contention that DEFENDANTS violated Business & Professions Code Section 17200 as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 8:

Any and ALL DOCUMENTS REFLECTING complaints made by YOU REGARDING the HOPE PROGRAM.

REQUEST FOR PRODUCTION NO. 9:

Any and ALL DOCUMENTS REFLECTING complaints made by YOU REGARDING PALACIOS.

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REQUEST FOR PRODUCTION NO. 10:

Any and ALL DOCUMENTS CONCERNING PLAINTIFF'S employment from January of 2022 to the present.

REQUEST FOR PRODUCTION NO. 11:

Any and ALL DOCUMENTS that support YOUR contention that the HOPE PROGRAM applies a uniform blanket retention policy as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 12:

Any and ALL DOCUMENTS CONCERNING the Dwyer order as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 13:

Any and ALL DOCUMENTS that support YOUR contention that YOU consistently and fully completed ALL assigned homework modules as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 14:

Any and ALL DOCUMENTS that support YOUR contention that PALACIOS admitted that HOPE routinely loses client homework packets as alleged in the operative complaint.

REQUEST FOR PRODUCTION NO. 15:

Any and ALL DOCUMENTS relating to YOUR violation of a condition of parole.

REQUEST FOR PRODUCTION NO. 16:

Any and ALL DOCUMENTS relating to the August 2025 Containment Team Meeting held at a CDCR parole office in Stockton.

REQUEST FOR PRODUCTION NO. 17:

Any and ALL DOCUMENTS relating to the suspension of your driver's license from January of 2022 to the present.

REQUEST FOR PRODUCTION NO. 18:

Any and ALL COMMUNICATIONS between YOU and a parole agent REGARDING the HOPE PROGRAM, including YOUR participation, treatment progress, and completion of homework.

REQUEST FOR PRODUCTION NO. 19:

Any and ALL DOCUMENTS relating to YOUR parole supervision conditions.

REQUEST FOR PRODUCTION NO. 20:

Any and ALL DOCUMENTS that REFLECT or evidence any statements made by a HOPE clinician REGARDING YOUR treatment through the HOPE Program.

REQUEST FOR PRODUCTION NO. 21:

Any and ALL DOCUMENTS which relate and/or refer to any medical examination, evaluation, testing and/or treatment received by YOU from any HEALTH CARE PROVIDER as a result of any physical, mental and/or emotional injuries YOU sustained as a result of the actions and conduct of DEFENDANTS that form the basis of YOUR operative complaint in this lawsuit

REQUEST FOR PRODUCTION NO. 22:

Any and ALL DOCUMENTS which relate and/or refer to any medications taken by YOU, whether prescribed or non-prescribed, as a result of any physical, mental and/or emotional injuries YOU sustained as a result of the actions and conduct of DEFENDANTS that form the basis of YOUR operative complaint in this lawsuit

REQUEST FOR PRODUCTION NO. 23:

Any and ALL DOCUMENTS that relate and/or refer to any payments made by any PERSON, including any insurer of any kind, to any HEATH CARE PROVIDER for any physical, mental and/or emotional injuries YOU suffered as a result of any injuries YOU suffered as a result of the actions and conduct of DEFENDANT that form the basis of your operative complaint in this lawsuit.

REQUEST FOR PRODUCTION NO. 24:

Any and ALL DOCUMENTS which contain any notes, memorandum or other recordings made by YOU of any event(s), action(s), occasion(s), situation(s) or behavior(s) that form the basis of YOUR claims in this lawsuit, including, but not limited to any diary, calendar, or journal.

REQUEST FOR PRODUCTION NO. 25:

Any and ALL DOCUMENTS setting forth any medical appointments YOU had and/or attended YOU relate to the event(s), action(s), occasion(s), situation(s) or behavior(s) that form

the basis of YOUR claims in this lawsuit, including, but not limited to any diary, calendar, or journal.

REQUEST FOR PRODUCTION NO. 26:

Any and ALL DOCUMENTS that relate and/or refer to any loss of income YOU contend YOU have suffered as a result of the actions and conduct of DEFENDANTS that form the basis of YOUR operative complaint in this lawsuit.

REQUEST FOR PRODUCTION NO. 27:

Any and ALL DOCUMENTS which relate and/or refer to any benefits of any type or kind received by YOU in the ten (10) years prior to the present. This request is specifically limited to benefits received by YOU from sources which YOU contend were adversely affected as a result of the actions and conduct of DEFENDANTS that form the basis of YOUR operative complaint in this lawsuit.

REQUEST FOR PRODUCTION NO. 28:

Any and ALL DOCUMENTS that relate and/or refer to any loss of benefits of any type or kind YOU contend YOU have suffered as a result of the actions and conduct of DEFENDANTS that form the basis of YOUR operative complaint in this lawsuit.

REQUEST FOR PRODUCTION NO. 29:

Any and ALL DOCUMENTS that relate and/or refer to any statements made or given by any person who witnessed any event(s), action(s), occasion(s), situation(s) or behavior(s) that form the basis of YOUR claims in this lawsuit.

REQUEST FOR PRODUCTION NO. 30:

Any and ALL statements made or given by any person who witnessed any event(s), action(s), occasion(s), situation(s) or behavior(s) that form the basis of YOUR claims in this lawsuit.

REQUEST FOR PRODUCTION NO. 31:

Any and ALL DOCUMENTS evidencing YOUR enrollment in any PUBLICLY SUBSIDIZED HEALTH CARE PROGRAM at any time in the last ten (10) years.

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REQUEST FOR PRODUCTION NO. 32:

Any and ALL DOCUMENTS referenced in YOUR operative complaint.

REQUEST FOR PRODUCTION NO. 33:

Any and ALL DOCUMENTS that support YOUR claims for compensatory damages against DEFENDANTS.

REQUEST FOR PRODUCTION NO. 34:

Any and ALL DOCUMENTS that support YOUR claims for punitive damages against DEFENDANTS.

REQUEST FOR PRODUCTION NO. 35:

Any and ALL DOCUMENTS that support YOUR claims for statutory damages against DEFENDANTS.

REQUEST FOR PRODUCTION NO. 36:

Any and ALL DOCUMENTS that support YOUR claims for declaratory relief against DEFENDANTS.

REQUEST FOR PRODUCTION NO. 37:

Any and ALL DOCUMENTS that support YOUR claims for a permanent injunction against HOPE PROGRAM.

REQUEST FOR PRODUCTION NO. 38:

Any and ALL DOCUMENTS that support YOUR claims for restitution against DEFENDANTS.

REQUEST FOR PRODUCTION NO. 39:

Any and ALL DOCUMENTS that relate and/or refer to YOUR MENTAL HEALTH at any time.

REQUEST FOR PRODUCTION NO. 40:

Any and ALL DOCUMENTS, including session notes, emails, and written COMMUNICATIONS, that REFLECT or evidence any COMMUNICATIONS between YOU and the California Department of Corrections and Rehabilitation REGARDING HOPE's treatment, including CDCR Form 3043 and CDCR Form 1502 DR.

REQUEST FOR PRODUCTION NO. 41:

Any and ALL DOCUMENTS CONCERNING YOUR parole supervision, including any DOCUMENTS CONCERNING a decision to continue or discharge YOUR parole supervision.

Dated: June 18, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, TO PLAINTIFF

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: June 18, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**